

#	Case Name	Tentative
1.	BUENO PADILLA VS. KNOTT'S BERRY FARM, LLC 2024-01371175	MOTION TO COMPEL DEPOSITION (ORAL OR WRITTEN) Plaintiff Kimberly Bueno-Padilla's Motion to Compel Defendants' Person Most Qualified Deposition and Production of Documents is DENIED. Code of Civil Procedure section 2025.450, subdivision (a) provides: " If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." On 4/3/25, 2/2/26, and 5/6/26, Plaintiff served deposition notices for Defendants' Persons Most Knowledgeable (Kim Decl., ¶ 4, Ex. A.) Defendants served objections to the notices on 5/28/25, 2/26/26, and 5/22/26 on the grounds they were unilaterally noticed and defense counsel and/or the witnesses were unavailable. (Byrne Decl., ¶¶ 3-5; Kim Decl., Exs. B, D.) Plaintiff contends Defendants did not provide alternate dates for deposition following their objections on 2/26/26 and 5/22/26. (Kim Decl., ¶¶ 9, 11, 15, 17.) The most recent deposition notice served on 5/6/26 noticed the deposition for 6/2/26. (Kim Decl., Ex. A.) With respect to Defendants' objections to this notice served on 5/22/26, Plaintiff's counsel stated she requested Defendants provide alternative dates by the end of business on 5/26/26 and Defendants did not respond. (Kim Decl., ¶ 17.) Plaintiff then filed this motion the next day on 5/27/26. As an initial matter, Defendants contend the notices are deficient as they fail to specify which defendant they are directed to and because the categories of testimony are overbroad, cover irrelevant topics, and are not described with reasonable particularity as required by Code of Civil Procedure section 2025.230. Code of Civil Procedure section 2025.401 provides "Any party served with a deposition notice that does not comply with Article 2 (commencing with Section 2025.210) waives any error or irregularity unless that party promptly serves a written objection

		specifying that error or irregularity at least three calendar days prior to the date for which the deposition is scheduled, on the party seeking to take the deposition and any other attorney or party on whom the deposition notice was served.” As discussed above, Defendants objected to the notices on the grounds they were unilaterally noticed and defense counsel and/or the witnesses were unavailable. (Byrne Decl., ¶ 3, Kim Decl., Exs. B, D.) As Defendants did not previously object on the grounds Plaintiff’s notices failed to specify a defendant or to comply with section 2025.230, those objections are waived. Under Code of Civil Procedure section 2025.450, however, a party may compel a deponent’s testimony if the deponent fails to appear “without having served a valid objection under Section 2025.410.” Though Plaintiff contends Defendants objections were made in bad faith, Plaintiff does not dispute they were timely served in response to each of the deposition notices and thus cannot rely on section 2025.450 to compel Defendants’ attendance. Moreover, to the extent Plaintiff relies on section 2025.480, that section applies where the deponent “fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent’s control that is specified in the deposition notice or a deposition subpoena.” The motion “shall be made no later than 60 days after the completion of the record of the deposition, and shall be accompanied by a meet and confer declaration under Section 2016.040.” As no deposition took place section 2025.480 is also inapplicable.
2.	SAHAKYAN VS. BMW OF NORTH AMERICA, LLC 2025-01531402	1. MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES Plaintiff Grigor Sahakyan’s motion to compel defendant BMW of North America, LLC (“BMW”) to provide further responses to Form Interrogatories 12.1, 15.1 and 17.1 (Set One), is CONTINUED to 10/13/26 at 9:00 a.m., in Dept. C32. BMW failed to participate in the meet and confer process in good faith. Although in response to Plaintiff’s initial meet and confer letter dated February 13, 2026, BMW’s counsel engaged in a telephonic conference with Plaintiff’s counsel, BMW’s counsel failed to respond to the meet and confer letters subsequently sent by Plaintiff’s counsel on February 26, 2026 and March 11, 2026. (Faulk Decl., ¶¶ 5, 6, 8, 9.) BMW is ordered to meet and confer in good faith either telephonically or in-person with Plaintiff to attempt to resolve each issue presented by Plaintiff’s Motion. No later than 9 court days prior to the continued